

Court No. - 21

Case :- WRIT - C No. - 6163 of 2017

Petitioner :- Shashi Kant Srivastava

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Harish Chandra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,J.

Hon'ble Mrs. Sangeeta Chandra,J.

In pith and substance petitioner Shashi Kant Srivastava is raising billing dispute before this Court.

Ms. Maimuna Fatima, Advocate, holding brief of Sri Mahboob Ahmad, Advocate, has contended before us that under the provisions of Indian Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005 billing disputes are to be settled as per the Chapter 6.5 of U.P. Electricity Supply Code, 2005 by the competent authority, accordingly, petitioner should avail the remedy, as is available to him under the 2005 Code.

Petitioner, in his turn, has proceeded to submit that he has already approached the competent authority for redressal of his grievances but till today nothing has been done in the matter.

Consequently, in the facts of the case, the competent authority is directed to decide the matter, in accordance with law, on the basis of records available, preferably within a period of next three months from the date of receipt of certified copy of this order.

With this, writ petition is ***disposed of***.

Order Date :- 9.2.2017

Shekhar